

Amendment No. 1 to SB2644

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2644

House Bill No. 2279*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 16, is amended by adding Sections 2 through 5 of this act as a new part.

SECTION 2.

(a) This part is known and may be cited as the "Crush Transnational Repression in Tennessee Act."

(b) The purpose of this part is to counter the threat and practice of transnational repression committed by foreign governments or foreign terrorist organizations against the citizens and residents of this state, and to counter the threat and practice of foreign government interstate harassment through extranational enforcement of a foreign government's laws and directives.

SECTION 3.

As used in this part, unless the context requires otherwise:

(1) "Agent of a foreign adversary" means an agent directed or controlled by a foreign adversary, or such agent's proxy;

(2) "Agent of a foreign terrorist organization" means an agent directed or controlled by a foreign terrorist organization, or a foreign terrorist organization agent's proxy;

(3) "Foreign adversary" means the countries specified in 15 CFR 791.4(a), or a successor regulation;

(4) "Foreign law" means a law, legal code, or system of governance of a jurisdiction other than the United States or a state or territory of the United States;

(5) "Foreign terrorist organization" means an entity designated as a foreign terrorist organization by the United States department of state in accordance with § 219 of the Immigration and Nationality Act (8 U.S.C. § 1189), or by the United States department of the treasury as a specially designated entity in accordance with 31 CFR subtitle B, chapter V;

(6) "Protected conduct" means conduct that is:

(A) Lawful under federal, state, or local law of the United States;

and

(B) Is:

(i) Free exercise of religion;

(ii) Speech, orally or in writing in print or digital form, on a matter of public interest or concern;

(iii) Petitioning any federal, state, or local government entity for redress of grievances; or

(iv) Peaceably assembling; and

(7) "Transnational repression" means an act emanating from or attributable to a foreign adversary or foreign terrorist organization that is committed:

(A) By an agent of that foreign adversary or foreign terrorist organization;

(B) With the intent to harass, intimidate, censor, or otherwise extend the foreign adversary's or foreign terrorist organization's ability to influence, control, or impose the foreign adversary's or foreign terrorist

organization's preferences on the behavior of individuals outside of the foreign adversary's territorial jurisdiction, if applicable; and

(C) Either:

(i) Directly by means of physical contact, threats, or electronic targeting; or

(ii) Indirectly by means such as actual or credible threats of collective punishment or harassment of other individuals under the regime's effective control, financial coercion, abuse of administrative processes, selective prosecution of laws of general application, or the use or direction of social media and telecommunications entities.

SECTION 4.

Except in the case of a Class A felony offense, a criminal offense must be punished one

(1) classification higher than is otherwise provided by law if the offense is:

(1) Committed by an agent of a foreign adversary or agent of a foreign terrorist organization while acting knowingly at the direction of, on behalf of, or under the influence of the foreign adversary or foreign terrorist organization or a proxy of the foreign adversary or foreign terrorist organization;

(2) Committed with the intent to:

(A) Coerce a person to act on behalf of a foreign adversary or foreign terrorist organization;

(B) Coerce a person to leave the United States or cause another person to leave the United States;

(C) Cause a person to forebear from engaging in protected conduct; or

(D) Retaliate against a person for engaging in protected conduct; and

(3) Not protected by the First Amendment to the United States Constitution.

SECTION 5.

(a) Notwithstanding a law to the contrary, a ruling or decision of a state court, arbitration panel, tribunal, or administrative agency that is based in whole or in part on a foreign law is void and unenforceable in this state if it would deny a party a liberty, right, or privilege guaranteed by the Constitution of Tennessee or the United States Constitution.

(b) A contract or contractual provision that is based in whole or in part on a foreign law is void and unenforceable in this state if it would deny a party a liberty, right, or privilege guaranteed by the Constitution of Tennessee or the United States Constitution.

(c) It is an offense to intentionally engage in the prevention, detection, investigation, monitoring, surveilling, or prosecution of an offense under the law or rule of a foreign adversary or foreign terrorist organization in violation of the laws of this state or the United States without the knowledge and approval of a state or federal law enforcement agency that is authorized to give such approval.

(d)

(1) Except as provided in subdivision (d)(2), a violation of subsection (c) is a Class D felony.

(2) A violation of subsection (c) is a Class C felony if, at the time that the offense was committed, the person who committed the offense was acting as an agent of a foreign adversary government or an agent of a foreign terrorist organization.

SECTION 6. Tennessee Code Annotated, Title 4, Chapter 1, Part 4, is amended by adding the following as a new section:

Each state agency shall include information on transnational repression, as defined in Section 3 of this act, in agency policies and procedures and provide for direct complaints of transnational repression to be made to a representative of the agency.

SECTION 7. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 8. This act takes effect July 1, 2026, the public welfare requiring it.